Rakesh Kumar Singh vs State Of U.P. And Another on 25 July, 2022

Author: Rajeev Misra

Bench: Rajeev Misra

```
HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 80

Case :- APPLICATION U/S 482 No. - 23156 of 2021

Applicant :- Rakesh Kumar Singh

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Vindhesh Kumar Dubey,Vijay Kumar Dwivedi

Counsel for Opposite Party :- G.A.,Shashi Bhushan Kunwar

Hon'ble Rajeev Misra,J.
```

Heard Mr. Vijay Kumar Dwivedi, the learned counsel for applicant and the learned A.G.A. for State and Mr. Shashi Bhushan Kunwar, the learned counsel representing complainant/opposite party-2.

Perused the record.

This application under section 482 Cr.P.C. has been filed challenging order dated 2.3.2020, passed by Principal Judge, Family Court, Ballia in Misc. Case No. 95 of 2018 (Manju Singh Vs. Rajesh Kumar Singh), under section 127 Cr.P.C., Police Station- Kotwali, District Ballia.

Record shows that opposite party-2 Manju Singh, filed a complaint in terms of Section 125 Cr.P.C. which was registered as Suit No. 373 of 1997 (Manju Singh Vs. Rakesh Kumar Singh) under sections 125 Cr.P.C., Police Station- Kotwali, District Ballia. Aforementioned criminal case came to be

allowed vide judgement and order dated 6.11.1997 whereby applicant was directed to pay Rs. 500/- per month to opposite party-2 and Rs. 300/- per month to her minor son as monthly maintenance. Aforesaid order dated 6.11.1997 was complied with. Faced with despair and destitution, opposite party-2 filed an application dated 2.22.2020 in terms of Section 127 Cr.P.C. for enhancement of amount of maintenance. This application came to be allowed by Court below by means of order dated 2.3.2020.

Feeling aggrieved by above order, applicant has now approached this Court by means of present application under section 482 Cr.P.C.

Learned counsel for applicant contends that opposite party-2 is no longer the legally wedded wife of applicant. Applicant had filed a divorce petition, which was decreed vide judgement and order dated 24.10.1997. On the aforesaid premise, it is contended that opposite party-2 is not entitled for maintenance from applicant.

Per contra, the learned A.G.A. and the learned counsel for oppsite party-2 have opposed the application. They jointly contend that it is by now well settled that a divorce women is entitled for maintenance. In support of above, reliance is palced upon judgements of Apex Court in Rohtash Singh Vs. Ramendri (Smt.) and Others, (2000) 3 SCC 180 and Dr. Swapan Kumar Banerjee Vs. State of West Bengal and Another, (2020) 19 SCC 342.

When confronted with above, learned counsel for applicant could not overcome the same.

In view of above, application fails and is liable to dismissed.

It is accordingly dismissed.

Order Date :- 25.7.2022 Arshad